

the acts he has done. If under the best advice he could procure he acts wrongly, it is his misfortune; but public policy requires that he should be the person to suffer" (a).

In one case where a testator had executed a promissory note in Switzerland for 600*l.*, but by a counter-note executed shortly after it was declared that 400*l.* only was due upon valuable consideration, but a Swiss Court, upon proceedings taken there, had awarded the payment of the whole 600*l.*, and the executor in England (though by our law but 400*l.* was demandable) had discharged the whole amount, Lord Alvanley observed, "*If the executor had taken advice, and been advised by any gentleman of the law in this country that he was bound to make this payment, I would not have held him liable, for I will not permit a testator to lay a trap for his executor, by doing a foolish act which may mislead him*" (b). But these remarks were addressed to the special circumstances of the case, and must not be taken as impugning the general rule.

12. **Foreign law.** — Every executor is taken to know the law of his country, but otherwise as to foreign laws. Thus, where a legacy was given to a married woman domiciled in Scotland, and before payment of the legacy the husband died, and the executors of the testator paid the legacy to the wife, and the executors of the husband afterwards sued the executors of the testator for the same legacy on the ground that, by the law of Scotland where the wife was domiciled, the *chose en action* did not survive as by the law of England to the wife, but passed to the representatives of the husband, it was held, that the executors were not bound to know the law of Scotland, and that as they had acted accord-

(a) *Doyle v. Blake*, 2 Sch. & Lef. 243; and see *Re Knight's Trusts*, 27 Beav. 49; *Urch v. Walker*, 3 M. & Cr. 705, 706; *Turner v. Maule*, 3 De G. & Sm. 497; *Peers v. Ceeley*, 15 Beav. 209; *Ex parte Norris*, 4 L. R. Ch. App. 280. [*Re Jackson*, 44 L. T. N. S. 467.] In *Boulton v. Beard*, 3 De G. M. & G. 608, the fact that the trustees had acted upon the advice of counsel, though stated at the bar, was not in

evidence, which may account for the silence of the L. J.J. upon this point in their judgments.

(b) *Vez v. Emery*, 5 Ves. 141. As to the effect in reference to costs, of acting under advice of counsel, see *Angier v. Stannard*, 3 M. & K. 566; *Devey v. Thornton*, 9 Hare, 232; *Field v. Donoughmore*, 1 Dru. & War. 234.